

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

IN RE:)
Matthew Kirby) **Docket No. 2024-85**
Application Tracking No. LI-723010)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, by and through Prosecuting Attorney Geoge Hasselback, and Applicant Matthew Kirby, by and through his counsel Kevin Lumpkin, who hereby Stipulate and Agree as follows:

Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has authority to deny an applicant's license if it finds that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. § 129(a); 3 V.S.A. §129a; 26 V.S.A. Ch.65; and the Rules of the Office of Professional Regulation.

Statement of Allegations

Basis for Denial One: 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

2. During the 2018-2019 school year, Applicant was employed as a high school counselor in the Jackson County Public School NC ("JCPS").
3. During a therapeutic session on or about March of 2019, a student disclosed that they had exchanged sexually explicit text messages with another individual who the student identified as an older adult (as the student was 18 years old at the time).
4. In a follow-up session later the same week, the same student disclosed that the person they had exchanged these sexually explicit text messages with was a teacher at the student's school.
5. Applicant informed the student that this behavior needed to be reported, as it was a legal issue as well as a school disciplinary issue.
6. Applicant discussed the potential ramifications of this behavior for the teacher involved and reiterated that the situation needed to be reported.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

7. The student requested that Applicant maintain her confidences and not report the exchange of sexually explicit text messages with the teacher.
8. At the time of this disclosure, JCPS had a policy in force that all “inappropriate student-teacher relationships should be immediately reported.”
9. Applicant was aware of this policy.
10. Applicant did not immediately report this behavior.
11. On or about early April of 2019, Applicant met with the same student for another treatment session.
12. At this session, the student informed Applicant that they had met up with the teacher with which they had exchanged sexually explicit text messages in the school parking lot.
13. The student further informed Applicant that they and the teacher kissed at that meeting.
14. Applicant reported the inappropriate relationship to the appropriate authorities.
15. On or about May 5, 2020, Applicant’s teaching license was revoked for failing to immediately report the inappropriate student/teacher relationship of which Applicant was aware.
16. Subsequently, this revocation was overturned, and a two (2) year suspension of Applicant’s teaching license was imposed.
17. Under Vermont law, when unprofessional conduct is by an applicant or person who later becomes an applicant, it may constitute grounds for denial of a license or other disciplinary action, whether the conduct occurred within or outside of the State of Vermont. *See* 3 V.S.A. 129a(a).
18. In Vermont, failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession, constitutes unprofessional conduct.
19. Paragraphs 11 through 25 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession when Applicant failed to immediately notify the appropriate authorities of an inappropriate student/teacher relationship in violation of policies of which Applicant was aware.

Basis for Denial Three: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

20. The State realleges and incorporates Paragraphs 2 through 27 above.
21. Under Vermont law, when unprofessional conduct is by an applicant or person who later becomes an applicant, it may constitute grounds for denial of a license or other disciplinary action, whether the conduct occurred within or outside of the State of Vermont. *See* 3 V.S.A. 129a(a).
22. In Vermont, engaging in conduct of a character likely to deceive, defraud, or harm the public, constitutes unprofessional conduct.
23. Paragraphs 11 through 25 above demonstrate that Respondent engaged in conduct of a character likely to harm the public when he failed to immediately report a relationship between a student and a teacher that had progressed to sending sexually explicit text messages between them.

Understandings

24. This Stipulation is neither an admission of facts by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not contest that the State has evidence which, if believed by the fact finder, may establish by a preponderance of the evidence that he engaged in the alleged misconduct.
25. Applicant admits that the order below is necessary to protect the public.
26. Applicant understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
27. Applicant specifically waives any claims that any disclosures made to the Board during its review of this agreement have prejudiced Applicant's rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
28. Applicant has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
29. Applicant is not under the influence of any drugs or alcohol at the time of signature of this Stipulation and Consent Order.
30. Applicant voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
31. Applicant voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

32. Applicant agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

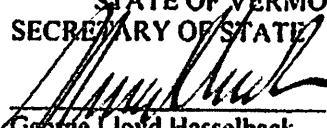
- A. The Board hereby **WARNS** Applicant's license when it is issued.
- B. Notwithstanding any provision above, Applicant must continue to meet all requirements for maintaining a license, license renewal, and license reinstatement.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Applicant's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 9/13/2024

By:

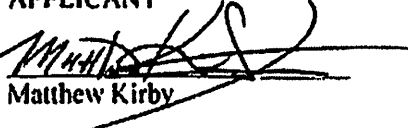
STATE OF VERMONT
SECRETARY OF STATE


George Lloyd Hasselback
Prosecuting Attorney
(802) 828-0350
george.hasselback@vermont.gov

Dated: 9/10/2024

By:

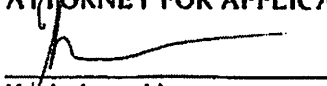
APPLICANT


Matthew Kirby

Dated: 9/11/24

By:

ATTORNEY FOR APPLICANT

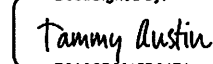

Kevin Lumpkin

APPROVED AND SO ORDERED:

Dated: _____

By:

DocuSigned by:


02A0CB6015D04F1...
Chairperson

Date of Entry: 9/26/24

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

IN RE:)
Matthew Kirby) **Docket No. 2024-85**
Application Tracking No. LI-723010)

NOTICE OF PRELIMINARY DENIAL

An application for licensure as an Licensed Clinical Mental Health Counselor (“LCMHC”) submitted by Matthew Kirby (“Applicant”) was received by the Office of Professional Regulation (“OPR”) on February 23, 2024 (the “Application”). The Application was complete on April 30, 2024. The Application has been **preliminarily denied** by the State of Vermont for the following reasons:

Authority

1. The Administrative Law Officer (the “ALO”) has authority to deny an applicant’s license if they find that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. §127; 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 62; the Administrative Rules for the Board of Allied Mental Health; and the Rules of the Office of Professional Regulation (“OPR”).

Bases for Denial

Basis for Denial One: 3 V.S.A. § 129a(a)(1) Fraudulent or deceptive procurement or use of a license.

2. On January 25, 2023, Applicant applied for licensure as a LCMHC-Interim Telehealth Registration.
3. 26 V.S.A. § 3054(a)(2)(B) requires that “To be eligible to obtain a telehealth license...a health care professional shall...hold an active, unencumbered license...in good standing in any other U.S. jurisdiction.”
4. The “apprentice” counselor’s license issued by the State of North Carolina is not an “unencumbered” license, as it requires the practitioner in North Carolina to work under a fully licensed practitioner as an “apprentice.”
5. As part of this application, Applicant was prompted to attest to the following statement: “I attest that I hold an active license which is in good standing in another state(s) or U.S. jurisdiction(s).”
6. Applicant responded to this prompt by stating, “yes.”

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

7. This answer was false, because at the time, Applicant did not hold an LCMHC license in good standing with another State, but rather held an "apprentice" counselor's license with the State of North Carolina.
8. Applicant signed the Application with the following admonitions and certifications in the Attestation:

Caution to Applicant

A false statement on this application may constitute unprofessional conduct and may be a basis for denial of a license application or discipline of a license, to include revocation. 3 V.S.A. § 129a. A person who declares, certifies, or verifies in a signed writing that a statement is true and is made under the pains and penalties of perjury, and who willfully makes a false statement in the declaration, certification, or verification, shall be guilty of perjury, a crime punishable by imprisonment not more than 15 years or a fine of not more than \$10,000.00, or both. 13 V.S.A. § 2901 & 2904(b).

Certification of Identity

In the case of an application for individual licensure, I am the person in whose name this application is completed; or in the case of a corporate applicant, I am an authorized officer of the applicant corporation, having executive authority to complete this application and personal knowledge of and accountability for the representations herein.

Certification of Accuracy

I understand that submission of this application represents that I have understood each question, that I have been candid and disclosed all relevant information, and that I have answered each question from sound personal knowledge, not a hunch, guess, or supposition. I understand that any failure to provide accurate information could result in a preliminary denial of my application or as a basis for unprofessional conduct charges against my license.

Certification of Truthfulness

I hereby certify, under the pains and penalties of perjury, that the answers, entries, and representations herein are true and accurate.

9. Paragraphs 2 through 8 demonstrate that Applicant engaged in fraudulent or deceptive procurement of a license by attesting to having an active license in good standing with another State, while only holding an "apprentice" license at the time.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Basis for Denial Two: 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

10. During the 2018-2019 school year, Applicant was employed as a high school counselor in the Jackson County Public School NC ("JCPS").
11. During a therapeutic session on or about March of 2019, a student disclosed that they had exchanged sexually explicit text messages with another individual who the student identified as an older adult (as the student was 18 years old at the time).
12. In a follow-up session later the same week, the same student disclosed that the person they had exchanged these sexually explicit text messages with was a teacher at the student's school.
13. Applicant informed the student that this behavior needed to be reported, as it was a legal issue as well as a school disciplinary issue.
14. Applicant discussed the potential ramifications of this behavior for the teacher involved and reiterated that the situation needed to be reported.
15. The student requested that Applicant maintain her confidences and not report the exchange of sexually explicit text messages with the teacher.
16. At the time of this disclosure, JCPS had a policy in force that all "inappropriate student-teacher relationships should be immediately reported."
17. Applicant was aware of this policy.
18. Applicant did not immediately report this behavior.
19. On or about early April of 2019, Applicant met with the same student for another treatment session.
20. At this session, the student informed Applicant that they had met up with the teacher with which they had exchanged sexually explicit text messages in the school parking lot.
21. The student further informed Applicant that they and the teacher kissed at that meeting.
22. Applicant reported the inappropriate relationship to the appropriate authorities.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

23. On or about May 5, 2020, Applicant's teaching license was revoked for failing to immediately report the inappropriate student/teacher relationship of which Applicant was aware.
24. Subsequently, this revocation was overturned, and a two (2) year suspension of Applicant's teaching license was imposed.
25. Under Vermont law, when unprofessional conduct is by an applicant or person who later becomes an applicant, it may constitute grounds for denial of a license or other disciplinary action, whether the conduct occurred within or outside of the State of Vermont. *See* 3 V.S.A. 129a(a).
26. In Vermont, failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession, constitutes unprofessional conduct.
27. Paragraphs 11 through 25 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession when Applicant failed to immediately notify the appropriate authorities of an inappropriate student/teacher relationship in violation of policies of which Applicant was aware.

Basis for Denial Three: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

28. The State realleges and incorporates Paragraphs 2 through 28 above.
29. Under Vermont law, when unprofessional conduct is by an applicant or person who later becomes an applicant, it may constitute grounds for denial of a license or other disciplinary action, whether the conduct occurred within or outside of the State of Vermont. *See* 3 V.S.A. 129a(a).
30. In Vermont, engaging in conduct of a character likely to deceive, defraud, or harm the public, constitutes unprofessional conduct.
31. Paragraphs 11 through 25 above demonstrate that Respondent engaged in conduct of a character likely to harm the public when he failed to immediately report a relationship between a student and a teacher that had progressed to sending sexually explicit text messages between them.

STATE OF VERMONT



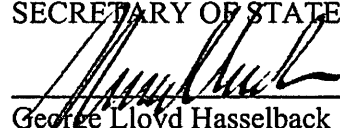
Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

As a result of the foregoing reasons, the Application for licensure is **PRELIMINARILY DENIED**. If you would like this decision to be reviewed, please refer to the rights at the bottom of this notice.

DATED this 28th day of May, 2024.

STATE OF VERMONT
SECRETARY OF STATE

By:


George Lloyd Hasselback
Prosecuting Attorney
(802) 828-0350
george.hasselback@vermont.gov

To seek review of this preliminary decision to deny your license application, you must file with the Docket Clerk a written petition requesting review within 30 days of the date of this notification. In order to expedite the review process, your petition shall include a statement of issues, that is, why the preliminary denial should be reversed and that the license should be granted.

Please send the petition via first-class mail, postage prepaid to the address below:

Julie Bowen, Docket Clerk
Office of Professional Regulation
89 Main Street, 3rd Floor
Montpelier, VT 05602-3402

Upon receipt of a timely petition for review, a hearing will be scheduled. The State will be represented by the state prosecutor. At the hearing, you will have the burden of proving that the preliminary decision to deny the license should be reversed and that your license should be granted. 3 V.S.A. § 129(e). You may have an attorney represent you, and you may bring witnesses and documents to the hearing. After the hearing, the tribunal may uphold the denial, in whole, or in part, may reverse the decision and issue an unrestricted license, or may issue a license with disciplinary sanctions attached. 3 V.S.A. § 129(a)(3).

If you do not petition for review, the preliminary denial of the license will become final in 30 days. As a final disciplinary decision, the denial will be reported to all required national data banks and shall be public pursuant to 3 V.S.A. §131.

Once the decision is final, it may be appealed pursuant to 3 V.S.A. § 130a.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402